NGO SUPPORT TOOLKIT · 01

NGO Foundations Checklist: Ghana Edition

The essentials for setting up a non-profit in Ghana properly, and keeping it in good standing every year. Tick each box as you go.

Free to use and adapt **For** new and growing NGOs, CBOs and youth groups

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HOW TO USE IT

- Work through one section at a time with your board.
- Note who owns each item and a date to finish it.
- Repeat the yearly calendar at the end every year.

BEFORE YOU START

This is general guidance, not legal, tax or financial advice. Rules change, so confirm current requirements with the authorities named here, or a qualified adviser.

1 Register and get recognised

In Ghana, an NGO is usually set up in two steps: incorporate the organisation, then get it recognised as a non-profit.

- [ ] **Choose your legal form.** Most NGOs incorporate as a *company limited by guarantee* under the Companies Act, 2019 (Act 992).
- [ ] **Incorporate with the Office of the Registrar of Companies (ORC).** Keep your certificate of incorporation, regulations (constitution) and other certificates safe, with scanned copies.
- [ ] **Apply to the Non-Profit Organisations Secretariat (NPOS)** at the Ministry of Gender, Children and Social Protection for your NPO licence, submitting its form with your ORC documents.
- [ ] **Keep beneficial ownership details up to date** with the ORC, and keep your own register of directors and members.
- [ ] **Confirm your Taxpayer Identification Number (TIN)** with the Ghana Revenue Authority (GRA).
- [ ] **Check local permits.** Ask your Metropolitan, Municipal or District Assembly whether your office needs an operating permit.
- [ ] **Open a bank account in the organisation's name.** Never run the organisation's money through personal accounts.

2 Govern well

- [ ] **A real board.** Clear chair, secretary and treasurer roles, with members who can challenge the founder and each other, not only friends and family.
- [ ] **Regular board meetings** (quarterly is a good rhythm), with an agenda, papers in advance and signed minutes.
- [ ] **A conflict of interest policy** and a register that board members update every year.
- [ ] **Clear delegation:** write down what the board decides and what staff or volunteers can decide.
- [ ] **An annual general meeting**, with the annual report and accounts presented to members.
- [ ] **No single point of failure.** At least two people can access bank accounts, passwords, files and key relationships.

3 Manage money with care

- [ ] **Two signatories** for every payment, and no one approves their own spending.
- [ ] **A yearly budget** approved by the board, with income and spending tracked every month.
- [ ] **A record for every transaction:** receipts, invoices and payment vouchers, kept as long as the law and your funders require.
- [ ] **Restricted funds kept separate.** Money given for a specific project is spent only on that project, and reported on.
- [ ] **Accounts audited every year** by a qualified auditor. The NPO Secretariat asks for audited financial statements in your annual report.
- [ ] **Tax sorted.** Ask GRA whether your organisation qualifies for relief on charitable income (don't assume it is automatic), run PAYE for any staff, and check withholding tax on payments to suppliers and consultants.

4 Look after people

- [ ] **Written role descriptions** and agreements for every staff member and volunteer.
- [ ] **Register with SSNIT as an employer** if you employ staff, and pay contributions every month.
- [ ] **A safeguarding policy** for children and vulnerable adults, with a named safeguarding lead and a safe way to report concerns.
- [ ] **A code of conduct** that everyone signs, plus anti-fraud, whistleblowing and anti-harassment policies.
- [ ] **Safer recruitment:** references, and background checks for roles that involve children.
- [ ] **Health and safety** plans for events, travel and field work.

5 Protect data and tell your story responsibly

- [ ] **Register with the Data Protection Commission** as a data controller under the Data Protection Act, 2012 (Act 843), if you collect personal data, such as registration forms or beneficiary lists.
- [ ] **Collect only what you need,** store it securely, and limit who can see it.

- [ ] **Get written consent** before using anyone's photo or story, and a parent's or guardian's consent for children.
- [ ] **Publish your legal name and registration number** on your website and official documents.
- [ ] **Use an official email address** on your own domain, not a personal account.

6 Stay compliant every year

What	Who to	When	Owner and date
Annual returns	ORC	Every year, on time	
Annual report: audited accounts, beneficial owners, any governance changes	NPO Secretariat	Every year	
Tax returns and PAYE	GRA	As GRA requires	
Staff pension contributions	SSNIT	Every month	
Data controller registration renewal	Data Protection Commission	When due	
Board review of policies and risks	Your board	Every year	
Public annual or impact report	Your supporters	Every year	

7 Where to check

Office of the Registrar of Companies
orc.gov.gh

Ghana Revenue Authority
gra.gov.gh

Data Protection Commission
dpc.gov.gh

Non-Profit Organisations Secretariat
npos.mogcsp.gov.gh

SSNIT
ssnit.org.gh

More free tools for NGOs
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